

March 29, 2018



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 12195
(SEVENTH REVISION)

EXPIRATION DATE: 2022-02-28

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Custom Metalcraft, Inc.
Springfield, MO
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, marking, sale and use of metal intermediate bulk containers meeting UN design type 31A as prescribed in Part 178, except for minimum thickness requirements, for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Part 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.203(a) in that marking the special permit number on the shipping paper is waived; § 172.302(c) in that marking the special permit number on package is waived; § 173.240-243 in that a packaging marked 31AW is authorized; and § 178.705(c)(iv)(A) in that the minimum required thickness is not met.

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5. BASIS: This special permit is based on Custom Metalcraft, Inc's application dated December 11, 2017, submitted in accordance with 49 CFR § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Materials for which a UN31A intermediate bulk container is prescribed in Part 173	As appropriate	As Appropriate	II, III

7. SAFETY CONTROL MEASURES:

a. Packagings prescribed must conform to the requirements for UN 31A intermediate bulk containers (IBCs) as provided in 49 CFR Subparts N and O, except that the minimum wall thickness of the IBC is less than prescribed in § 178.705(c)(iv)(A). The packaging capacity may not exceed 2082 liters (550 gallons).

b. For a reference steel having a product of $R_m \times A_o = 10,000$ (for SI units), where R_m and A_o are as defined in § 178.705(c), the unprotected metal IBC may have a minimum wall thickness of not less than 3.5 mm; and

c. For steels other than the reference steel described in paragraph b. above, an equivalent minimum thickness is calculated in accordance with § 178.705(c)(iv)(B). The actual values for the tensile strength and percent elongation of the material to be used in the IBC may be substituted for the minimum values. The actual values substituted would be determined by the IBC manufacturer or material producer through tests on specimens from the steel coil(s) to be used in the fabrication of the IBC. Actual values must be determined in accordance with ASTM recommendations.

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8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modifications or changes are made to the package and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit. It must be made available to a DOT representative upon request.

g. The marking requirements of §§ 172.203(a) and 172.302(c) are waived. Each IBC must be durably and plainly marked with an identification code of 31AW.

f. This special permit serves as a Competent Authority Approval CA-9904001 issued by the Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration of the United States Department of Transportation, in accordance with Paragraph 7.9 of the General Introduction to the International Maritime Dangerous Goods Code.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.

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10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, used to transport packages covered by this special permit.
11. Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each [H]azmat employee, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous

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materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode